

TENTATIVE RULINGS FOR DEPT. S36 [DATE]
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a “Stipulation and Order For Appointment of Official Reporter Pro Tempore” to the court in the form found on the Court’s website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT’S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court’s website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#)

You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>)

You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

MINDA E. STACKELHOUSE,

Plaintiff,

v.

ORO GRANDE SCHOOL DISTRICT,

Defendant.

Case No.: CIVVS2400520

**[TENTATIVE] ORDER
GRANTING MOTION FOR ISSUE,
EVIDENTIARY, AND MONETARY
SANCTIONS FILED BY
PLAINTIFF MINDA E.
STACKELHOUSE**

I. INTRODUCTION

This is an employment litigation. On September 11, 2024, Plaintiff Minda E. Stackelhouse filed her Complaint against Defendant Oro Grande School District (District). The operative First Amended Complaint (FAC) pleads 3 causes of action: (1) discrimination (race and sex/gender association), (2) retaliation, and (3) failure to prevent. Defendant District answered.

A. The FAC's Allegations

The FAC alleges that the District employed Stackelhouse as an Assistant Director of Curriculum and Instruction. During her employment, she heard about and observed a pattern and practice of discrimination and harassment based on race/ethnicity and sex/gender. Stackelhouse

opposed and complained about these patterns and practices. She insisted on fair and thorough investigations. Yet the District failed to take steps to remediate. (FAC ¶¶ 10-12.) In November-December 2022, the District transferred her out of human resources and moved her to a remote location. On June 15, 2023, her supervisor informed her that he was being pressured to terminate her because of her association with and speaking on behalf of African-Americans and Hispanic females. She reported the retaliation and lodged a complaint. On September 22, 2023, she was terminated (¶¶13-17).

B. Pending Motion

Now Plaintiff Stackelhouse seeks issue, evidentiary, and monetary sanctions for Defendant District's failure to comply with the Court's April 17, 2025 and April 24, 2026, discovery orders regarding the production of documents. Defendant District filed an opposition. Plaintiff Stackelhouse filed a reply. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. PRIOR COURT ORDERS AT ISSUE

On April 17, 2025, the Court heard Plaintiff Stackelhouse's motions to compel Defendant District's responses to (1) request for production of documents, set one; and (2) form interrogatories, set one. The Court made the following rulings and orders:

1. GRANTS Plaintiff's motion to compel responses to form interrogatories. Defendant Oro Grande School District is ORDERED to serve verified, objection-free responses to Plaintiff's Form Interrogatories – General, Set One, and Plaintiff's Form Interrogatories – Employment, Set One, on or before May 9, 2025.

2. GRANTS Plaintiff's motion to compel responses to requests for production (RFPs). Defendant Oro Grande School District is ORDERED to serve verified, objection-free responses to Plaintiff's Request for Production of Documents, Set One, on or before May 23, 2025.

3. The Court DECLINES to award monetary discovery sanctions as none were requested. (*See* April 17, 2025 Minute Order.)

On April 24, 2026, the Court heard Plaintiff Stackelhouse's Ex-Parte Application for Application to Compel Defendant's Compliance with the Court's April 17, 2025 Order. The Court ORDERED defense counsel to produce, in native form, the four or five documents for which links appear in exhibits B and C to the declaration of Afshin Mozaffari, filed on April 20, 2026, by May 5, 2026. (*See* April 24, 2026 Portal Minute Order.)

III. APPLICABLE LAW

Code of Civil Procedure section 2023.010 describes misuses of the discovery process, which includes the failing to respond or to submit to an authorized method of discovery; making without substantial justification an unmeritorious objection to discovery; making an evasive response to discovery; and/or disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010, subs. (d)-(g).)

After notice and an opportunity for a hearing, the court may impose sanctions on any party, person, or attorney who engages in conduct that is a misuse of the discovery process. (Code Civ. Proc., § 2023.030.) Available statutory sanctions include: (1) monetary sanctions; (2) issue sanctions, deeming designated facts established; (3) evidence sanctions, precluding the introduction of designated matters; (4) terminating sanctions; and (5) contempt sanctions. (Code Civ. Proc., § 2023.030, subs. (a)-(d).)

The sanctions imposed should be suitable and necessary to enable the party seeking discovery to obtain the object of the discovery and not to impose punishment. (*Petersen v. Vallejo* (1968) 259 Cal.App.2d 757, 782; *In re Marriage of Michaely* (2007) 150 Cal.App.4th 802, 809.) Before imposing sanctions, the court must find a failure to comply with an order and that the failure was willful. (*Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 929

(*Miranda*); *Deyo v. Kilbourne* (1979) 84 Cal.App.3d 771, 787 (*Deyo*).) A party's lack of diligence may be deemed willful, if the party understood its obligation, had the ability to comply, and failed to comply. (*Deyo, supra*, 84 Cal.App.3d at 787.) The trial court has broad discretion in choosing to award sanctions and which form to impose. (*Miranda, supra*, 117 Cal.App.4th at 928-29.)

IV. WHY THE DISTRICT SHOULD BE SANCTIONED FOR DISCOVERY ABUSE

Despite being ordered to provide responses without objections, Defendant District asserted numerous objections to the discovery at issue. The District was twice ordered (April 17, 2025, and April 24, 2026) to produce all responsive documents, specifically the "HS Concerns" spreadsheets in native format, including metadata. Despite these orders, the District failed to comply fully, producing only partial or non-native versions and withholding critical metadata.

Plaintiff argues that in verified discovery responses and depositions, the District repeatedly denied the existence of the spreadsheets and knowledge of the Plaintiff's complaints, despite evidence to the contrary (*e.g.*, emails showing the spreadsheets were shared with the Superintendent and legal counsel).

In addition, Plaintiff asserts that the District refused to provide access to the Google Sheets "Activity Dashboard" and "View History," which would show who viewed the spreadsheets and when — key evidence for the plaintiff's retaliation claim. Plaintiff's counsel made multiple attempts to resolve the issue informally, but the District either ignored or delayed responses.

Plaintiff asserts that the withheld spreadsheets and metadata are central to proving the District's knowledge of the Plaintiff's protected activity and the causal link to adverse employment actions (a required element for retaliation under FEHA). The Plaintiff was deprived

of the opportunity to conduct follow-up discovery and to rebut the District's denials, undermining her ability to present her case.

Plaintiff seeks orders deeming it established that the District concealed the spreadsheets, that management and counsel reviewed them, and that the District understood them as discrimination/harassment reports. The District would be precluded from denying these facts at trial. Plaintiff requests \$24,820.00 in attorneys' fees and costs incurred due to the District's misconduct.

In its opposition, the District argues that it substantially complied with court orders by producing native Excel spreadsheets for all versions before the deadline. The District asserts that the production of converted Excel files is standard practice and preserves all relevant data, formulas, and revisions.

Here, based upon the evidence presented, the District understood its obligation, had the ability to comply, and failed to comply. As such, the District's action appears to have been willful. Given the impending trial date and the demonstrated inadequacy of monetary sanctions to alter the District's conduct, the Court grants issue and evidentiary sanctions as set forth below.

V. CONCLUSION

Plaintiff's motion for sanctions is GRANTED. The Court ORDERS issue and/or evidence preclusion sanctions as follows:

(a) It is deemed established that Defendant Oro Grande School District concealed and refused to produce document(s) reflecting Plaintiff's reports of workplace discrimination and harassment, namely a set of Excel Spreadsheet(s) entitled "HS Concerns," in their native forms (the "Concerns Spreadsheet(s)");

(b) Defendant District is precluded from denying, and it is deemed established that Oro Grande School District's management, Board of Trustees, and counsel received and

reviewed the content of the Concerns Spreadsheet(s) on multiple occasions during Dr.

Stackelhouse's employment; and

(c) Defendant District is precluded from denying, and it is deemed established that Oro Grande School District understood Dr. Stackelhouse's Concerns Spreadsheet(s) as reports of workplace discrimination and harassment.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]

Hon. Joseph B. Widman
Judge of the Superior Court